

Court No. - 21

Case :- WRIT - C No. - 16178 of 2022

Petitioner :- Manno Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Masoom Alam

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Ram Manohar Narayan Mishra,J.

Learned counsel for the petitioner is present. None appears for the respondent.

List in next week.

Order Date :- 17.8.2022

Dhirendra/

Court No. - 40

Case :- WRIT - C No. - 16178 of 2022

Petitioner :- Manno Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Masoom Alam

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

List this case on 14.12.2022.

In the meantime, Sri Udit Chandra, learned counsel for the electricity department would ascertain as to whether a prepaid connection/meter could be given to the petitioner, even if the premises, where she was living was a disputed one.

Order Date :- 5.12.2022

Faridul

Court No. - 40

Case :- WRIT - C No. - 16178 of 2022

Petitioner :- Manno Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Masoom Alam

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

This writ petition was filed with a prayer that the petitioner be granted electricity connection.

Learned counsel for the respondent states that the petitioner was not entitled for getting any electricity connection as the property in which the electricity connection was prayed for was a disputed property.

Learned counsel appearing for the electricity department was required to take instructions as to whether an electricity connection could be granted with a pre-paid meter or not, if the property was a disputed one.

However, when we perused the Clause 4.4 of the U.P. Electricity Supply Code, 2005 we find that under Clause 4.4 of the U.P. Electricity Supply Code, 2005, a pre-paid meter can be granted to a consumer who was living in a jhuggi/huntments/patti. If that is the case, the Court is of the view that the electricity connection can be granted by the electricity department to the petitioner also.

We may however, note that the grant of the pre-paid meter/electricity connection would not create any title over the property of the petitioner.

With these observations, the writ petition stands disposed of.

Order Date :- 14.12.2022

R./